

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

Tentative Ruling

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**2025CUPP054330: REGINA TENZER, INDIVIDUALLY, et al. vs WILLIAM ROBERT  
FISCHBACH, AN INDIVIDUAL**

**09/23/2026 in Department 21**

**Motion to Strike Punitive Damages from Second Amended Complaint**

**Tentative Rulings.** Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to [courtroom21@ventura.courts.ca.gov](mailto:courtroom21@ventura.courts.ca.gov) before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.) If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Motion:** Defendant Jose Jairo Martinez Ponce's Motion to Strike Punitive Damages from Plaintiff's Second Amended Complaint (Unopposed).

**Tentative Ruling:** Defendant Ponce's Motion to Strike Punitive Damages from Plaintiff's Second Amended Complaint is MOOT in light of the Stipulation and Order that was signed by the Court on 9/18/26.

Pursuant to this stipulation, the following portions of the Second Amended Complaint are stricken as to Defendant Jose Jairo Martinez Ponce only:

- 1) The words, "punitive damages," from paragraph 26, page 5, lines 23 to 24;
- 2) The entirety of paragraph 27, page 5, line 26 through page 6, line 2;
- 3) The entirety of paragraph 28, page 6, lines 2 through 8;
- 4) The portion of paragraph 29, page 6, lines 10 through line 14, which reads,

"Defendants" acts and/or omission, were either committed in a deliberate, cold, callous, malicious, intentional and/or unreasonable

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manner, as fully set forth above, causing fatal injuries to the Decedents, and done with a conscious disregard of Decedents' rights and safety, Plaintiffs. The Plaintiffs request punitive damages against ... Defendants DOES1 through 100 in an amount appropriate to punish or set an example of them."; and

- 5) The entirety of paragraphs 9 and 10 of the Prayer for Relief.

Counsel for Defendant Ponce to give notice of this Court's ruling.